

1. Line 71 through 85:

71 (c) The department shall establish separate quality measures for each Medicaid provider
72 type selected for participation in accordance with the process described in
73 Subsections (4) and (5).
74 (3) ↗ (a) ↖ The department shall make rules in accordance with Title 63G,
74a Chapter 3, Utah
75 Administrative Rulemaking Act, to establish:
76 ↗ [(a)] (i) ↖ a process for a participating Medicaid provider to submit
76a documentation verifying
77 the participating Medicaid provider's completion or progress toward the quality
78 measures established for the Medicaid provider's provider type;
79 ↗ [(b)] (ii) ↖ a methodology for evaluating a participating Medicaid
79a provider's progress toward
80 quality measures; and
81 ↗ [(c)] (iii) ↖ exclusions for a Medicaid provider's participation based on
81a adverse findings or
82 disciplinary actions by a certifying, licensing, or accrediting entity.
82a ↗ (b) The department shall report to the Rules Review and General Oversight
82b Committee on rules the department makes in accordance with this Subsection (3). ↖
83 (4) (a) The department shall annually, before October 31, submit a report to the Social
84 Services Appropriations Subcommittee of the department's evaluation of:
85 (i) Medicaid provider types to assist the Legislature in selecting and prioritizing

2. Line 92 through 97:

92 other comparable payers, including Medicare, where applicable;
93 (ii) the length of time since the last rate increase for the Medicaid provider type; and
94 (iii) an analysis of the impact of incentive payments on the Medicaid provider type.
94a ↗ (c) In each year in which incentive payments are distributed as described in
94b this section, department shall annually, before October 31, report to the Social
94c Services Appropriations Subcommittee on the distribution of incentive payments as
94d described in Subsection (6), including on what percentage of an appropriation under
94e this section was distributed directly to Medicaid providers. ↖

95 (5) (a) Subject to appropriations from the Legislature for this purpose, and the
96 Legislature's determination of eligible Medicaid provider types for the following
97 fiscal year, a participating Medicaid provider may be eligible for incentive payments

3. *Line 201 through 206e:*

201 (a) shall include initial and periodic reviews to determine the constitutional
202 appropriateness of the placement; and
203 (b) with regard to facilities in the community, do not require commitment to the division.
204 (4) ~~§→ [{~~When~~}~~]Except as provided in Subsection (5), when ←~~§~~ the division makes
204a amendments to a contract the division enters into under
205 Subsection (2), the division shall notify a provider under contract with the division at
206 least 30 days before the effective date of the amendments.
206a ~~§→~~ (5) The division may waive the 30-day notice requirement described in
206b Subsection (4):
206c (a) if a contractor requests a contract change;
206d (b) if a service rate is increased; or
206e (c) in response to a natural disaster or public health emergency. ←~~§~~